

7. Scope of the Right to Life and Personal Liberty Under Article 21

7.1 Article 21 – Protection of Life and Personal Liberty

▶ **This right is the heart of the Constitution**, and the most important protection in our laws.

It helps protect our right to life and freedom.

▶ **Article 21 gives three rights:**

- Right to life
- Right to personal freedom (liberty)
- Right to die with dignity (suicide, euthanasia)

▶ **No one can take away a person's freedom or life** without a proper legal process. The law must be followed fairly.

▶ **'Personal liberty'** means more than just being free from jail. It includes:

- Right to sleep
- Right to travel to other countries
- Right to get bail and legal help
- Right to be safe from police torture (third-degree)

▶ **You can use Article 21** only when the **government or its officers** take away your life or freedom.

If a **private person** violates your rights, Article 21 does not apply.

▶ These rights **can only be limited** by following a **proper legal process**.

▶ **This right is for everyone** – not just Indian citizens, but also foreigners.

▶ So, even **foreigners can use this right**, but it **does not give them the right to live permanently in India**.

7.2 Meaning and Concept of The Right to Life

▶ **Every person has the right to live, be free, and feel safe.**

▶ **The right to life is the most important right of all.**

▶ The word **'life'** in Article 21 means more than just being alive or breathing. It includes many rights that make life meaningful and dignified, like:

- Right to live with respect and dignity
- Right to earn a living (livelihood)
- Right to good health
- Right to clean air (pollution-free)

- Right to live a good and comfortable life
 - Right to travel abroad
 - Right to privacy
 - Protection from being locked alone (solitary confinement)
 - Protection from delay in death sentence
- Right to have a home (shelter)
 - Protection from police or jail torture (custodial death)
 - Protection from public hanging
 - Anything that helps a person live a **dignified** life

▶ These rights **make life better** and depend on the basic right to life itself.

▶ Since human rights are for living people, the **right to life** must come first. Without life, no other right has any meaning.

▶ Without Article 21, other fundamental rights would have no importance.

▶ **Article 21 of the Constitution of India (1950)** says:
 “No person shall be deprived of his life or personal liberty except according to a legal procedure.”

▶ The word ‘**life**’ in Article 21 does not mean just being alive.
 It includes:

- Right to live with dignity
- Right to clean air
- Right to health
- And other basic needs for a good life

▶ This right is very important because it helps a person live a full and happy life.
 It covers all the basic needs for human growth and comfort.

▶ The **Supreme Court** has also agreed that Article 21 includes the right to eat well, sleep well, and live healthy.

▶ Article 21 also protects a person’s **tradition, culture, and heritage**, and the right to live in peace at home with dignity.